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February 19, 2025

By: Weaver

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 856.3, which relates to gang-related offenses; modifying reference to certain offense; updating statutory language and references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 856.3, is amended to read as follows:

Section 856.3. Any person who attempts or commits a gang-related offense as a condition of membership in a criminal street gang or while in association with any criminal street gang or gang member shall be guilty of a felony offense. ~~Upon~~ punishable upon conviction, ~~the violator shall be punished by incarceration~~ imprisonment in the custody of the Department of Corrections for a term of five (5) years, which shall be in addition to any other penalty imposed. For purposes of this section, "criminal street gang" is defined by subsection F of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title and "gang-related offense" means those

1 offenses enumerated in ~~paragraphs 1 through 16 of~~ subsection F of
2 Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
5 February 19, 2025 - DO PASS
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